

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

15 CV 3620

JOSEPH LOGLISCI,

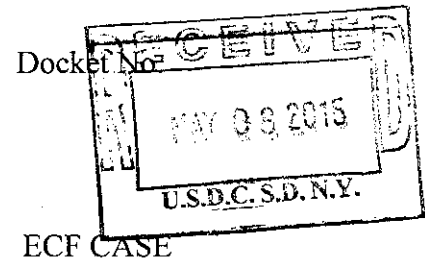
~~JUDGE FURMAN~~

COMPLAINT AND
JURY DEMAND

Plaintiff,

-against-

CICERO COLOMA; JUAN ORTIZ; and "JOHN and JANE DOE 1-10", individually and in their official capacities (the names John Doe being fictitious, as the true names are presently unknown),



Defendants.

-----X
Plaintiff Joseph Loglisci, by his attorney Cary London, of London Indusi LLP, for his complaint against Defendants alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. §1983 and 42 U.S. §1988 for the violation of his civil rights protected by the Fourth and Fourteenth Amendments of the United States Constitution.

2. The claim arises from a March 20, 2014 incident in which Defendants, acting under color of state law, unlawfully stopped Mr. Loglisci, threw him up against a wall, and arrested him without probable cause. Mr. Loglisci initially spent approximately 23 hours unlawfully in police custody. At arraignment, bail was set based on the false information provided by the Defendants and Mr. Loglisci spent additional time in jail before being released. After approximately 7 court appearances, Mr. Loglisci's case was dismissed and sealed on January 28, 2015.

3. Plaintiff seeks monetary damages (special, compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as

the Court deems just and proper.

JURISDICTION

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331 and 1343(a) (3) and (4).

VENUE

6. Venue is laid within the Southern District of New York in that a substantial part of the events giving rise to the claim occurred within the boundaries of the Southern District. 28 U.S.C. § 1391 (b).

PARTIES

7. Plaintiff Joseph Loglisci ("Mr. Loglisci") resided at all times here relevant in Kings County, City and State of New York.

8. Police Officer Cicero Coloma, Shield No. 2629 ("Coloma") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Coloma was, at the time relevant herein, a Police Officer under Shield # 2629 of Narcotics Borough Manhattan South. Defendant Coloma is sued in his individual capacity.

9. Sergeant Juan Ortiz, Shield No. 5606 ("Ortiz") was, at all times here relevant, a Sergeant employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Ortiz was, at the time relevant herein, a Sergeant under Shield # 5606 of Narcotics Borough Manhattan South. Defendant Ortiz is sued in his individual capacity.

10. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 10.

11. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

12. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

13. On March 20, 2014, at approximately 5:00 p.m., Mr. Loglisci was walking on Madison Street near Rutgers Street in New York County, New York.

14. While on Madison Street, Mr. Loglisci was approached by Defendants, including Defendant Ortiz and Coloma.

15. Mr. Loglisci was not committing any crime or violating any law or local ordinance.

16. The Defendants, including Defendant Ortiz and Coloma unlawfully stopped and threw Mr. Loglisci against a storefront wall on Madison Street.

17. The Defendants did not observe Mr. Loglisci commit any crime or infraction.

18. The Defendants, including Defendant Ortiz and Coloma placed Mr. Loglisci in handcuffs.

19. Defendants did not have probable cause or reasonable suspicion to detain or arrest Mr. Loglisci.

20. Mr. Loglisci did not resist arrest.

21. After Defendants, including Defendant Ortiz and Coloma, placed Mr. Loglisci in handcuffs, they searched his person without his authority or permission.

22. No contraband or anything of illegality was found on Mr. Loglisci.

23. Mr. Loglisci's car was approximately 50 feet away from where Defendants approached him.

24. Defendants then searched Mr. Loglisci's car without permission or authority.

25. No contraband or anything of illegality was found in Mr. Loglisci's car.

26. Defendants, including Defendant Ortiz and Coloma placed Mr. Loglisci under arrest and transported him to central bookings.

27. Defendants, including Defendant Colomo and Defendant Ortiz, conveyed false information to prosecutors in order to have Mr. Loglisci prosecuted for Criminal Possession of a Controlled Substance in the Seventh Degree.

28. Defendants, including Defendant Colomo and Defendant Ortiz, prepared false sworn affidavits and false police reports relating to Mr. Loglisci's arrest.

29. Mr. Loglisci was unlawfully held in police custody for approximately 23 hours before being arraigned on those charges.

30. At arraignments, bail was set on Mr. Loglisci based on the Defendant's false allegations, and the matter was adjourned.

31. As a result of the Defendant's false allegations, Mr. Loglisci spent additional time unlawfully imprisoned before making bail.

32. Defendants, including Defendant Colomo and Defendant Ortiz, repeatedly falsified information relating to the facts and circumstances surrounding Mr. Loglisci's arrest, including a

false claim they had recovered crack cocaine from a nearby car.

33. Those reports were forwarded to one or more prosecutors at the New York County District Attorney's office.

34. After coming to court for approximately seven court appearances, Mr. Loglisci's case was dismissed and sealed because the "The Prosecution cannot prove this case beyond a reasonable doubt" on January 28, 2015.

35. At all times relevant hereto, Defendants were involved in the decision to arrest Mr. Loglisci without probable cause or failed to intervene in the actions of his fellow officers when he observed them arresting Mr. Loglisci without probable cause.

36. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Mr. Loglisci and violate his civil rights.

37. As a direct and proximate result of the acts of Defendants, Mr. Loglisci suffered the following injuries and damages: violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and lost wages.

FIRST CAUSE OF ACTION

Unlawful Stop and Search

42 U.S.C. § 1983 Against Individual Defendants

38. The above paragraphs are here incorporated by reference as though fully set forth.

39. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiffs without reasonable suspicion.

40. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein before alleged.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

41. The above paragraphs are here incorporated by reference as though fully set forth.

42. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

43. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

44. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.

46. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

47. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.

48. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.

49. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.

51. The individual Defendants created false evidence against Plaintiff, to wit, sworn documents and testimony alleging that Mr. Loglisci possessed drugs.

52. The individual Defendants forwarded false evidence to prosecutors in the New York County District Attorney's office.

53. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual Defendants violated Plaintiff's right to a fair trial under the Due Process Clause of the Fourth and Fourteenth Amendments of the United States Constitution.

54. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

55. The above paragraphs are here incorporated by reference as though fully set forth.

56. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

57. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

58. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiff compensatory and special damages in an amount to be determined by a jury;
- d) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: May 7, 2015
Brooklyn New York

Respectfully submitted,



Cary London, Esq.
Bar Number: CL2947
Attorney for Mr. Loglisci
London Indusi LLP
186 Joralemon Street, Suite 1202
Brooklyn, NY 11201
(718) 301-4593 – Phone
(718) 247-9391 – Fax
Cary@LondonIndusi.com